

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4200

By: Schreiber

AS INTRODUCED

An Act relating to mental health; amending 43A O.S. 2021, Section 1-103, as last amended by Section 3, Chapter 364, O.S.L. 2025 (43A O.S. Supp. 2025, Section 1-103), which relates to definitions within the Mental Health Law; modifying certain definitions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43A O.S. 2021, Section 1-103, as last amended by Section 3, Chapter 364, O.S.L. 2025 (43A O.S. Supp. 2025, Section 1-103), is amended to read as follows:

Section 1-103. When used in this title, unless otherwise expressly stated, or unless the context or subject matter otherwise requires:

1. "Department" means the Department of Mental Health and Substance Abuse Services;

2. "Chair" means the chair of the Board of Mental Health and Substance Abuse Services;

1 3. "Mental illness" means a substantial disorder of thought,
2 mood, perception, psychological orientation or memory that
3 significantly impairs judgment, behavior, capacity to recognize
4 reality or ability to meet the ordinary demands of life;

5 4. "Board" means the Board of Mental Health and Substance Abuse
6 Services as established by the Mental Health Law;

7 5. "Commissioner" means the Commissioner of Mental Health and
8 Substance Abuse Services;

9 6. "Indigent person" means a person who does not have
10 sufficient assets or resources to support the person and to support
11 members of the family of the person lawfully dependent on the person
12 for support;

13 7. "Facility" means any hospital, school, building, house or
14 retreat, authorized by law to have the care, treatment or custody of
15 an individual with mental illness, drug or alcohol dependency,
16 gambling addiction, or an eating disorder including, but not limited
17 to, public or private hospitals, community mental health centers,
18 clinics, satellites, and community-based structured crisis centers;
19 provided, that facility shall not mean a child guidance center
20 operated by the State Department of Health;

21 8. "Consumer" means a person under care or treatment in a
22 facility pursuant to the Mental Health Law, or in an outpatient
23 status;

1 9. "Care and treatment" means medical care and behavioral
2 health services, as well as food, clothing and maintenance,
3 furnished to a person;

4 10. Whenever in this law or in any other law, or in any rule or
5 order made or promulgated pursuant to this law or to any other law,
6 or in the printed forms prepared for the admission of consumers or
7 for statistical reports, the words "insane", "insanity", "lunacy",
8 "mentally sick", "mental disease" or "mental disorder" are used,
9 such terms shall have equal significance to the words "mental
10 illness";

11 11. "Licensed mental health professional" means:

- 12 a. a psychiatrist who is a diplomate of the American
13 Board of Psychiatry and Neurology,
- 14 b. a psychiatrist who is a diplomate of the American
15 Osteopathic Board of Neurology and Psychiatry,
- 16 c. a physician licensed pursuant to the Oklahoma
17 Allopathic Medical and Surgical Licensure and
18 Supervision Act or the Oklahoma Osteopathic Medicine
19 Act,
- 20 d. a clinical psychologist who is duly licensed to
21 practice by the State Board of Examiners of
22 Psychologists,
- 23 e. a professional counselor licensed pursuant to the
24 Licensed Professional Counselors Act,

- f. a person licensed as a clinical social worker pursuant to the provisions of the Social Worker's Licensing Act,
- g. a licensed marital and family therapist as defined in the Marital and Family Therapist Licensure Act,
- h. a licensed behavioral practitioner as defined in the Licensed Behavioral Practitioner Act,
- i. an advanced practice nurse as defined in the Oklahoma Nursing Practice Act,
- j. a physician's assistant who is licensed in good standing in this state, or
- k. a licensed alcohol and drug counselor/mental health (LADC/MH) as defined in the Licensed Alcohol and Drug Counselors Act;

12. "Mentally incompetent person" means any person who has been adjudicated mentally or legally incompetent by an appropriate district court;

13. a. "Person requiring treatment" means a person who because of his or her mental illness or drug or alcohol dependency meets at least one of the following:

- (1) poses a substantial risk of ~~immediate~~ physical harm to self as manifested by evidence or serious

threats of or attempts at suicide or other
significant self-inflicted bodily harm,

(2) poses a substantial risk of ~~immediate~~ physical
harm to another person or persons as manifested
by evidence of violent behavior directed toward
another person or persons,

(3) has placed another person or persons in a
reasonable fear of violent behavior directed
towards such person or persons or serious
physical harm to them as manifested by serious
~~and immediate~~ threats,

(4) is in a condition of severe deterioration that is
continuing, as has been observed within the
previous seventy-two-hour period ~~such that,~~
~~without immediate intervention, there exists a~~
~~substantial risk that severe impairment or injury~~
~~will result to the person,~~ or

(5) poses a substantial risk of ~~immediate serious~~
physical ~~injury~~ harm to self or death as
manifested by evidence that the person is unable
to provide for and is not providing for his or
her basic physical needs.

b. To the extent it is reasonably available, the relevant
mental health or substance abuse history of the person

1 shall be considered and may be proffered as part of
2 the evidence to determine whether the person is a
3 person requiring treatment or an assisted outpatient.
4 The mental health or substance abuse history of the
5 person shall not be the sole basis for this
6 determination.

7 c. In determining whether the person is a person
8 requiring treatment, the following shall also be
9 considered along with any other relevant information:

- 10 (1) the person's history of violence or criminal acts
11 including unadjudicated criminal acts if evidence
12 of the person's culpability is evident or
13 established,
- 14 (2) the person's history of compliance with mental
15 and behavioral health medication and treatment,
- 16 (3) the probability and result of the person's
17 noncompliance with medication and treatment if
18 not committed,
- 19 (4) the ~~consumer's~~ person's history of using weapons
20 in an illegal or unsafe manner, and
- 21 (5) any previous instances of harm, attempted harm,
22 or threatened harm to self or others.

23 d. Unless a person also meets the criteria established in
24 subparagraph a, b, or c of this paragraph, "person

1 requiring treatment" or an "assisted outpatient" shall
2 not mean:

- 3 (1) a person whose mental processes have been
4 weakened or impaired by reason of advanced years,
5 dementia, or Alzheimer's disease,
6 (2) a person who is an individual with intellectual
7 disability or developmental disability as defined
8 in Section 1408 of Title 10 of the Oklahoma
9 Statutes,
10 (3) a person with seizure disorder, or
11 (4) a person with a traumatic brain injury, ~~or~~
12 ~~(5) a person who is homeless.~~

- 13 e. (1) A person who meets the criteria established in
14 this paragraph but who is medically unstable may
15 be discharged and transported in accordance with
16 Section 1-110 of this title. Alternatively, if
17 the facility holding the person is able to treat
18 the additional medical conditions of that person,
19 the facility may treat the additional medical
20 conditions in an effort to medically stabilize
21 the patient.
22 (2) If the facility holding the person is unable to
23 treat the additional medical conditions of a
24 person who meets the criteria established in this

paragraph, the patient shall be discharged and transported in accordance with Section 1-110 of this title.

(3) All time elapsed during medical stabilization tolls the twelve-hour time for an initial assessment pursuant to paragraph 1 of subsection A of Section 5-208 of this title, and the one-hundred-twenty-hour emergency detention time pursuant to paragraph 3 of subsection A of Section 5-208 of this title;

14. "Petitioner" means a person who files a petition alleging that an individual is a person requiring treatment or an assisted outpatient;

15. "Executive director" means the person in charge of a facility as defined in this section;

16. "Private hospital or facility" means any general hospital maintaining a neuro-psychiatric unit or ward, or any private hospital or facility for care and treatment of a person having a mental illness, which is not supported by the state or federal government. The term "private hospital" or "facility" shall not include nursing homes or other facilities maintained primarily for the care of elderly and disabled persons;

17. "Individualized treatment plan" means a proposal developed during the stay of an individual in a facility, under the provisions

1 of this title, which is specifically tailored to the treatment needs
2 of the individual. Each plan shall clearly include the following:

- 3 a. a statement of treatment goals or objectives, based
4 upon and related to a clinical evaluation, which can
5 be reasonably achieved within a designated time
6 interval,
- 7 b. treatment methods and procedures to be used to obtain
8 these goals, which methods and procedures are related
9 to each of these goals and which include specific
10 prognosis for achieving each of these goals,
- 11 c. identification of the types of professional personnel
12 who will carry out the treatment procedures including
13 appropriate medical or other professional involvement
14 by a physician or other health professional properly
15 qualified to fulfill legal requirements mandated under
16 state and federal law,
- 17 d. documentation of involvement by the individual
18 receiving treatment and, if applicable, the accordance
19 of the individual with the treatment plan, and
- 20 e. a statement attesting that the executive director of
21 the facility or clinical director has made a
22 reasonable effort to meet the plan's individualized
23 treatment goals in the least restrictive environment

1 possible closest to the home community of the
2 individual;

3 18. "Telemedicine" means technology-enabled health and care
4 management and delivery systems that extend capacity and access,
5 which includes:

- 6 a. synchronous mechanisms, which may include live
7 audiovisual interaction between a patient and a health
8 care professional or real-time provider to provider
9 consultation through live interactive audiovisual
10 means,
- 11 b. asynchronous mechanisms, which include store and
12 forward transfers, online exchange of health
13 information between a patient and a health care
14 professional and online exchange of health information
15 between health care professionals, but shall not
16 include the use of automated text messages or
17 automated mobile applications that serve as the sole
18 interaction between a patient and a health care
19 professional,
- 20 c. remote patient monitoring, and
- 21 d. other electronic means that support clinical health
22 care, professional consultation, patient and
23 professional health-related education, public health
24 and health administration;

1 19. "Recovery and recovery support" means nonclinical services
2 that assist individuals and families to recover from alcohol or drug
3 problems. They include social support, linkage to and coordination
4 among allied service providers including but not limited to
5 transportation to and from treatment or employment, employment
6 services and job training, case management and individual services
7 coordination, life skills education, relapse prevention, housing
8 assistance, child care, and substance abuse education;

9 20. "Assisted outpatient" means a person who:

- 10 a. is either currently under the care of a facility
11 certified by the Department of Mental Health and
12 Substance Abuse Services as a community mental health
13 center, or is being discharged from the custody of the
14 Department of Corrections, or is being discharged from
15 a residential placement by the Office of Juvenile
16 Affairs,
17 b. is suffering from a mental illness,
18 c. is unlikely to survive safely in the community without
19 supervision, based on a clinical determination,
20 d. has a history of lack of compliance with treatment for
21 mental illness that has:
22 (1) prior to the filing of a petition, at least twice
23 within the last thirty-six (36) months been a
24 significant factor in necessitating

1 hospitalization or treatment in a hospital or
2 residential facility including admission to a
3 community-based structured crisis center as
4 certified by the Department of Mental Health and
5 Substance Abuse Services, or receipt of services
6 in a forensic or other mental health unit of a
7 correctional facility, or a specialized treatment
8 plan for treatment of mental illness in a secure
9 juvenile facility or placement in a specialized
10 residential program for juveniles, or

11 (2) prior to the filing of the petition, resulted in
12 one or more acts of serious violent behavior
13 toward self or others or threats of, or attempts
14 at, serious physical harm to self or others
15 within the last ~~twenty-four (24)~~ thirty-six (36)
16 months,

17 e. is, as a result of his or her mental illness, unlikely
18 to voluntarily participate in outpatient treatment
19 that would enable him or her to live safely in the
20 community,

21 f. in view of his or her treatment history and current
22 behavior, is in need of assisted outpatient treatment
23 in order to prevent a relapse or deterioration which
24

1 would be likely to result in serious harm to the
2 person or persons, and

3 g. is likely to benefit from assisted outpatient
4 treatment;

5 21. "Assisted outpatient treatment" means outpatient services
6 which have been ordered by the court pursuant to a treatment plan
7 approved by the court to treat an assisted outpatient's mental
8 illness and to assist the person in living and functioning in the
9 community, or to attempt to prevent a relapse or deterioration that
10 may reasonably be predicted to result in suicide or the need for
11 hospitalization; and

12 22. "Urgent recovery clinic" means a clinic that offers
13 voluntary services aimed at the assessment and immediate
14 stabilization of acute symptoms of mental illness, alcohol and other
15 drug abuse, and emotional distress. Unless the person receiving
16 treatment consents to a longer duration or unless the person is
17 placed into emergency detention under Sections 5-206 through 5-209
18 of this title, no more than twenty-three (23) hours and fifty-nine
19 (59) minutes of services may be provided to a consumer during one
20 episode of care at an urgent recovery clinic.

21 SECTION 2. This act shall become effective November 1, 2026.

22
23 60-2-14716 TJ 12/18/25
24